

22STCV21424 22STCV21424

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV21424 Hearing Date: September 22, 2026 Dept: C

ALEXIS L. v. NORWALK/LA MIRADA

UNIFIED SCHOOL DISTRICT, ET AL.

CASE NO. 22STCV21424

RULINGS ON MOTIONS IN LIMINE: AS
OF SEPTEMBER 22, 2026 AT 9:00 A.M.

PLAINTIFF'S MOTION IN LIMINE #5

Plaintiff seeks to exclude any and all evidence, references to evidence, testimony or argument related to the socio-economic status, race, or ethnicity of Plaintiff and Plaintiff's family. The District argues that evidence of Plaintiff's income, lifestyle, needs, upbringing, background, expectations, and future plans are necessary to provide the jury with the factual context required to determine what among of damages, if any, will make Plaintiff whole. EC352 provides, "The court, in its discretion, may exclude evidence if its probative value is substantially outweighed by the probability that its admission will (a) necessitate undue consumption of time or (b) create substantial danger of undue prejudice, of confusing the issues, or of misleading the jury." The motion is GRANTED in part. The probative value of evidence concerning Plaintiff's upbringing, background, and expectations is substantially outweighed by the likelihood of undue prejudice. Such evidence relates to Plaintiff's socioeconomic status generally. However, evidence regarding Plaintiff's income, educational goals, family support structure, daily lifestyle, and future plans are sufficiently individualized, and are thus admissible.

PLAINTIFF'S MOTION IN LIMINE #8

Plaintiff seeks to preclude all testimony and all opinions of the District's expert April Thames, Ph.D. on the following grounds: 1) Dr. Thames never conducted a mental examination of Plaintiff despite the opportunity to seek one; 2) Dr. Thames never performed any psychological testing of Plaintiff; 3) Dr. Thames admitted she cannot provide a diagnosis or prognosis without such examination or testing; and 4) Dr. Thames conceded it would be "irresponsible" to make a diagnosis of someone she has never seen. In opposition, the District asserts Dr. Thames is Chief Psychologist of the Adult Psychology Division within the Department of Psychiatry and Biobehavioral Sciences at UCLA. She has reviewed Plaintiff's medical records and "has properly formed opinions associated with the treatment Plaintiff received, as well as the manner by which Plaintiff's treaters and retained expert reached their conclusions." The Court is inclined to admit Dr. Thames's testimony because Plaintiff's objections go to the weight of such testimony, not its admissibility. However, the District does not state what Dr. Thames's opinions are. The Court will hear a proffer from the District.

PLAINTIFF'S MOTION IN LIMINE #9

Plaintiff seeks to exclude all reference, testimony, argument, and evidence regarding Defendant Scott Waln's attendance at bible study with school counselor Sandy Vanlant, his participation in a staff bible study group at Los Alisos Middle School, and any other references to Waln's religious activities, church involvement, or religiosity. The Court has not received an opposition to Plaintiff's Motion in Limine #9. The Court will hear from Defendants.

PLAINTIFF'S MOTION IN LIMINE #10

Plaintiff seeks to preclude Defendants from introducing any testimony, opinions, or medical records that suggest Plaintiff's emotional injuries as a result of the sexual abuse were caused by an unrelated thyroid condition and/or possible marijuana use, and/or any other speculative reasons that do not meet the standard for a causation opinion. In particular, Plaintiff seeks to exclude records and testimony from Manal Habib, M.D. (an endocrinologist),

Carolyn Nichols, M.D. (a pediatrician), and Defense expert April Thames, Ph.D. Plaintiff argues that there is no evidence that Plaintiff is a continuous user of marijuana or that a thyroid or any other medical issue has caused Plaintiff's emotional distress. The Court has not received an opposition to Plaintiff's Motion in Limine #10. The Court will hear from Defendants.

DEFENDANT SCOTT WALN'S MOTION
IN LIMINE NO. 1

Defendant Scott Waln was convicted after a trial by jury of violations of Penal Code section 288(a) against Plaintiff in Case No. VA158343-01. He also was convicted of violating Penal Code section 288(a) against another minor victim in the same criminal case. Waln was sentenced to an indeterminate term of 30 years to life in state prison and required to register pursuant to Penal Code section 290. Here, Waln seeks to exclude evidence of his sentence including the length of the sentence and the sex offender registration requirement. In opposition, Plaintiff argues that evidence of Waln's sentence is admissible for impeachment because Waln is expected to testify that he never abused Plaintiff.

As a threshold matter, the Court finds that Waln is collaterally estopped from denying his sexual abuse of Plaintiff in this civil trial because he was convicted by jury of the same act in his criminal trial. (Teitelbaum Furs, Inc. v. Dominion Ins. Co. (1962) 58 Cal.2d 601, 607 (holding that any issue necessarily decided in a prior criminal proceeding is conclusively determined as to the parties if it is involved in a subsequent civil action). Here, the issue of whether Waln sexually abused Plaintiff was necessarily decided against him by a jury in the prior criminal proceeding, and he may not deny the allegations in this civil trial.

With this in mind, evidence of the sentence Waln received in the criminal trial is not admissible for impeachment in this civil trial because Waln may not deny the allegations against him. Waln's motion to exclude evidence of this sentence is GRANTED under EC352.

DEFENDANT SCHOOL DISTRICT'S
MOTION IN LIMINE NO. 1

The District seeks to exclude any

and all evidence or reference to Waln's alleged abuse of Mia G. and/or Brianna A., including any and all criminal or civil actions arising from such allegations, and precluding Mia G. and Brianna A. from testifying at trial. Mia G. is a plaintiff in a separate civil action related to allegations of abuse by Waln between 2021 and 2022, more than two years after Waln's abuse of Plaintiff in 2019 and 2020. Waln was acquitted of charges he faced related to alleged misconduct with Mia G. Plaintiff does not oppose the District's motion to exclude evidence or reference to Waln's alleged abuse of Mia G.

Brianna A. alleges she was sexually abused by Defendant Waln in 2017. The District contends that it immediately reported the alleged misconduct to law enforcement and promptly put Waln on leave pending the investigation, thereby preventing Waln's further contact with students. However, the District Attorney ultimately declined to prosecute Waln for the alleged misconduct, citing a lack of evidence supporting Brianna A.'s claims. Only then was Waln allowed to return to his teaching position with the District. In her Amended Opposition, Plaintiff points out that Waln was convicted of sexually abusing Brianna A. in 2017 during the same trial which resulted in his conviction for sexually abusing Plaintiff in 2019. Plaintiff argues that allegations of prior sexual abuse and misconduct in 2017 are directly relevant to Plaintiff's claims for negligent supervision and negligent retention, and they are crucial for Plaintiff to establish that Defendant NLMUSD breached the standard of care in failing to implement protections to protect students like Plaintiff against foreseeable abuse. More specifically, Plaintiff argues that the 2017 incidents involving Brianna A. put the District on notice and should have led to reporting, heightened supervision, and warnings to parents. The District's motion to exclude evidence of Waln's abuse of Brianna A. is DENIED. That the District immediately reported the alleged misconduct to law enforcement and put Waln on leave is not dispositive. Evidence of Waln's inappropriate conduct and sexual abuse of Brianna A. in 2017 is relevant to show what the District knew when Waln sexually abused Plaintiff in 2019, and what protective measures, if any, the District should have taken in response to Brianna A.'s 2017 allegations. The 2017 incidents are not remote in time to the 2019 incident, and both involve minors at the same school who were abused by Waln. The Court will hear from the parties regarding the parameters of what is admissible (e.g., the admissibility of evidence relating to Waln's sentence, other civil proceedings, etc.)

DEFENDANT SCHOOL DISTRICT'S MOTION
IN LIMINE NO. 8

The District seeks to exclude Plaintiff's use of deposition videos during opening statement. The Court is inclined to allow brief portions of videotaped deposition testimony provided that all videos are disclosed to defendants in advance. If the parties dispute the admissibility of any videos, the parties may request a ruling from the Court.

[The Court will address Defendant School District's Motions in Limine Nos. 4, 11, 13, and 14 at a later time.]